

STATE OF NEW YORK

7945--B

2025-2026 Regular Sessions

IN SENATE

May 14, 2025

Introduced by Sen. PALUMBO -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the public officers law, in relation to authorizing the village of East Hampton in the town of East Hampton, county of Suffolk to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The vehicle and traffic law is amended by adding a new section 1180-h to read as follows:

§ 1180-h. Owner liability for failure of the operator to comply with certain posted maximum speed limits; village of East Hampton, town of East Hampton, county of Suffolk. (a) 1. Notwithstanding any other provision of law, the village of East Hampton, in the town of East Hampton, county of Suffolk is hereby authorized to establish a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with posted maximum speed limits on any road in such village in accordance with the provisions of this section. Such village, for purposes of the implementation of the demonstration program, shall operate photo speed violation monitoring systems within such village at no more than five locations at any one time during any year of such program. Such photo speed violation monitoring systems may be stationary or mobile and shall be activated at locations selected by such village. Such photo speed violation monitoring systems shall be placed at locations based on criteria, including but not limited to whether the location is within a quarter mile of a school, speed-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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ing data, accident history, proximity to facilities for senior citizens or disabled persons, roadway geometry and equitable geographic distribution.

2. No photo speed violation monitoring system shall be used in a village authorized to establish a demonstration program pursuant to this section unless (i) on the day it is to be used it has successfully passed a self-test of its functions; and (ii) it has undergone an annual calibration check performed pursuant to paragraph four of this subdivision. The village shall install signs giving notice that a photo speed violation monitoring system is in use to be mounted on advance warning signs notifying motor vehicle operators of such upcoming speed zone and/or on speed limit signs applicable within such speed zone, in conformance with standards established in the MUTCD.

3. Operators of photo speed violation monitoring systems shall have completed training in the procedures for setting up, testing, and operating such systems. Each such operator shall complete and sign a daily set-up log for each such system that the village operates that (i) states the date and time when, and the location where, the system was set up that day, and (ii) states that such operator successfully performed, and the system passed, the self-tests of such system before producing a recorded image that day. The village shall retain each such daily log until the later of the date on which the photo speed violation monitoring system to which it applies has been permanently removed from use or the final resolution of all cases involving notices of liability issued based on photographs, microphotographs, videotape or other recorded images produced by such system.

4. Each photo speed violation monitoring system shall undergo an annual calibration check performed by an independent calibration laboratory which shall issue a signed certificate of calibration. The village shall keep each such annual certificate of calibration on file until the final resolution of all cases involving a notice of liability issued during such year which were based on photographs, microphotographs, videotape or other recorded images produced by such photo speed violation monitoring system.

5. (i) Such demonstration programs shall utilize necessary technologies to ensure, to the extent practicable, that photographs, microphotographs, videotape or other recorded images produced by such photo speed violation monitoring systems shall not include images that identify the driver, the passengers, or the contents of the vehicle. Provided, however, that no notice of liability issued pursuant to this section shall be dismissed solely because such a photograph, microphotograph, videotape or other recorded image allows for the identification of the driver, the passengers, or the contents of vehicles where the village shows that it made reasonable efforts to comply with the provisions of this paragraph in such case.

(ii) Photographs, microphotographs, videotape or any other recorded image from a photo speed violation monitoring system shall be for the exclusive use of the village for the purpose of the adjudication of liability imposed pursuant to this section and of the owner receiving a notice of liability pursuant to this section, and shall be destroyed by the village upon the final resolution of the notice of liability to which such photographs, microphotographs, videotape or other recorded images relate, or one year following the date of issuance of such notice of liability, whichever is later. Notwithstanding the provisions of any other law, rule or regulation to the contrary, photographs, microphotographs, videotape or any other recorded image from a photo speed

violation monitoring system shall not be open to the public, nor subject to civil or criminal process or discovery, nor used by any court or administrative or adjudicatory body in any action or proceeding therein except that which is necessary for the adjudication of a notice of liability issued pursuant to this section, and no public entity or employee, officer or agent thereof shall disclose such information, except that such photographs, microphotographs, videotape or any other recorded images from such systems:

(A) shall be available for inspection and copying and use by the motor vehicle owner and operator for so long as such photographs, microphotographs, videotape or other recorded images are required to be maintained or are maintained by such public entity, employee, officer or agent; and

(B) (1) shall be furnished when described in a search warrant issued by a court authorized to issue such a search warrant pursuant to article six hundred ninety of the criminal procedure law or a federal court authorized to issue such a search warrant under federal law, where such search warrant states that there is reasonable cause to believe such information constitutes evidence of, or tends to demonstrate that, a misdemeanor or felony offense was committed in this state or another state, or that a particular person participated in the commission of a misdemeanor or felony offense in this state or another state, provided, however, that if such offense was against the laws of another state, the court shall only issue a warrant if the conduct comprising such offense would, if occurring in this state, constitute a misdemeanor or felony against the laws of this state; and

(2) shall be furnished in response to a subpoena duces tecum signed by a judge of competent jurisdiction and issued pursuant to article six hundred ten of the criminal procedure law or a judge or magistrate of a federal court authorized to issue such a subpoena duces tecum under federal law, where the judge finds and the subpoena states that there is reasonable cause to believe such information is relevant and material to the prosecution, or the defense, or the investigation by an authorized law enforcement official, of the alleged commission of a misdemeanor or felony in this state or another state, provided, however, that if such offense was against the laws of another state, such judge or magistrate shall only issue such subpoena if the conduct comprising such offense would, if occurring in this state, constitute a misdemeanor or felony in this state; and

(3) may, if lawfully obtained pursuant to this clause and clause (A) of this subparagraph and otherwise admissible, be used in such criminal action or proceeding.

(b) Where the village of East Hampton has established a demonstration program pursuant to subdivision (a) of this section, the owner of a vehicle shall be liable for a penalty imposed pursuant to this section if such vehicle was used or operated with the permission of the owner, express or implied, in violation of subdivision (c) or (d) of section eleven hundred eighty of this article, and such violation is evidenced by information obtained from a photo speed violation monitoring system; provided however that no owner of a vehicle shall be liable for a penalty imposed pursuant to this section where the operator of such vehicle has been convicted of the underlying violation of subdivision (c) or (d) of section eleven hundred eighty of this article.

(c) For purposes of this section, the following terms shall have the following meanings:

1. "manual on uniform traffic control devices" or "MUTCD" shall mean the manual and specifications for a uniform system of traffic control

1 devices maintained by the commissioner of transportation pursuant to
2 section sixteen hundred eighty of this chapter;

3 2. "owner" shall have the meaning provided in article two-B of this
4 chapter; and

5 3. "photo speed violation monitoring system" shall mean a vehicle
6 sensor installed to work in conjunction with a speed measuring device
7 which automatically produces two or more photographs, two or more micro-
8 photographs, a videotape or other recorded images of each vehicle at the
9 time it is used or operated in a speed zone in violation of subdivision
10 (c) or (d) of section eleven hundred eighty of this article in accord-
11 ance with the provisions of this section.

12 (d) A certificate, sworn to or affirmed by a technician employed by
13 the county in which the charged violation occurred or its vendor or
14 contractor, or a facsimile thereof, based upon inspection of photo-
15 graphs, microphotographs, videotape or other recorded images produced by
16 a photo speed violation monitoring system, shall be prima facie evidence
17 of the facts contained therein. Any photographs, microphotographs, vide-
18 otape or other recorded images evidencing such a violation shall be
19 available for inspection in any proceeding to adjudicate the liability
20 for such violation pursuant to this section.

21 (e) An owner liable for a violation of subdivision (c) or (d) of
22 section eleven hundred eighty of this article pursuant to a demon-
23 stration program established pursuant to this section shall be liable
24 for monetary penalties in accordance with a schedule of fines and penal-
25 ties promulgated by the parking violations bureau of such county;
26 provided, however, that the monetary penalty for driving at a speed in
27 excess of the maximum speed limit by ten or more miles per hour and less
28 than thirty miles per hour shall not exceed fifty dollars, and the mone-
29 tary penalty for driving in excess of the maximum speed limit by thirty
30 or more miles per hour shall not exceed one hundred dollars; provided,
31 further, that an owner shall be liable for an additional penalty not to
32 exceed twenty-five dollars for each violation for the failure to respond
33 to a notice of liability within the prescribed time period. Notwith-
34 standing any inconsistent provisions of law to the contrary, all reven-
35 ues from the program established pursuant to this section shall be
36 dedicated to law enforcement purposes within the village of East Hamp-
37 ton.

38 (f) An imposition of liability pursuant to this section shall not be
39 deemed a conviction as an operator and shall not be made part of the
40 operating record of the person upon whom such liability is imposed nor
41 shall it be used for insurance purposes in the provision of motor vehi-
42 cle insurance coverage.

43 (g) 1. A notice of liability shall be sent by first class mail to each
44 person alleged to be liable as an owner for a violation of subdivision
45 (c) or (d) of section eleven hundred eighty of this article pursuant to
46 this section, within fourteen business days if such owner is a resident
47 of this state and within forty-five business days if such owner is a
48 non-resident. Personal delivery on the owner shall not be required. A
49 manual or automatic record of mailing prepared in the ordinary course of
50 business shall be prima facie evidence of the facts contained therein.

51 2. A notice of liability shall contain the name and address of the
52 person alleged to be liable as an owner for a violation of subdivision
53 (c) or (d) of section eleven hundred eighty of this article pursuant to
54 this section, the registration number of the vehicle involved in such
55 violation, the location where such violation took place, the date and
56 time of such violation, the identification number of the camera which

1 recorded the violation or other document locator number, at least two
2 date and time stamped images of the rear of the motor vehicle that
3 include the same stationary object near the motor vehicle, and the
4 certificate charging the liability.

5 3. The notice of liability shall contain information advising the
6 person charged of the manner and the time in which the person may
7 contest the liability alleged in the notice. Such notice of liability
8 shall also contain a prominent warning to advise the person charged that
9 failure to contest in the manner and time provided shall be deemed an
10 admission of liability and that a default judgment may be entered there-
11 on.

12 4. The notice of liability shall be prepared and mailed by the agency
13 or agencies designated by the village authorized to implement a demon-
14 stration program pursuant to this section.

15 (h) If an owner of a vehicle receives a notice of liability pursuant
16 to this section for any time period during which such vehicle was
17 reported to the police department as having been stolen, it shall be a
18 valid defense to an allegation of liability for a violation of subdivi-
19 sion (c) or (d) of section eleven hundred eighty of this article that
20 the vehicle had been reported to the police as stolen prior to the time
21 the violation occurred and had not been recovered by such time. For
22 purposes of asserting the defense provided by this subdivision it shall
23 be sufficient that an original incident form issued by the police on the
24 stolen vehicle be sent by first class mail to the justice court of said
25 village.

26 (i) 1. An owner who is a lessor of a vehicle to which a notice of
27 liability was issued pursuant to subdivision (g) of this section shall
28 not be liable for the violation of subdivision (c) or (d) of section
29 eleven hundred eighty of this article, provided that:

30 (i) prior to the violation, the lessor has filed with such village in
31 accordance with the provisions of section two hundred thirty-nine of
32 this chapter; and

33 (ii) within thirty-seven days after receiving notice from such village
34 of the date and time of a liability, together with the other information
35 contained in the original notice of liability, the lessor submits to
36 such court the correct name and address of the lessee of the vehicle
37 identified in the notice of liability at the time of such violation,
38 together with such other additional information contained in the rental,
39 lease or other contract document, as may be reasonably required by such
40 bureau pursuant to regulations that may be promulgated for such purpose.

41 2. Failure to comply with subparagraph (ii) of paragraph one of this
42 subdivision shall render the owner liable for the penalty prescribed in
43 this section.

44 3. Where the lessor complies with the provisions of paragraph one of
45 this subdivision, the lessee of such vehicle on the date of such
46 violation shall be deemed to be the owner of such vehicle for purposes
47 of this section, shall be subject to liability for such violation pursu-
48 ant to this section and shall be sent a notice of liability pursuant to
49 subdivision (g) of this section.

50 (j) If the owner liable for a violation of subdivision (c) or (d) of
51 section eleven hundred eighty of this article pursuant to this section
52 was not the operator of the vehicle at the time of the violation, the
53 owner may maintain an action for indemnification against the operator.

54 (k) Nothing in this section shall be construed to limit the liability
55 of an operator of a vehicle for any violation of subdivision (c) or (d)
56 of section eleven hundred eighty of this article.

1 (1) Where the village of East Hampton adopts a demonstration program
2 pursuant to subdivision (a) of this section, such village shall submit a
3 report on the results of the use of photo speed violation monitoring
4 systems to the governor, the temporary president of the senate and the
5 speaker of the assembly on or before the first day of June next succeed-
6 ing the effective date of this section and on the same date in each
7 succeeding year in which the demonstration program is operable. Such
8 report shall include, but not be limited to:

9 1. a description of the locations where photo speed violation monitor-
10 ing systems were used;

11 2. the number of violations recorded at each such location and in the
12 aggregate on a daily, weekly and monthly basis;

13 3. the total number of notices of liability issued;

14 4. the number of fines and total amount of fines paid after first
15 notice of liability;

16 5. the number of violations adjudicated and results of such adjudi-
17 cations including breakdowns of dispositions made;

18 6. the total amount of revenue realized by such village; and

19 7. quality of the adjudication process and its results.

20 § 2. Subdivision 2 of section 87 of the public officers law is amended
21 by adding a new paragraph (v) to read as follows:

22 (v) are photographs, microphotographs, videotape or other recorded
23 images prepared under the authority of section eleven hundred eighty-h
24 of the vehicle and traffic law.

25 § 3. This act shall take effect on the thirtieth day after it shall
26 have become a law and shall expire December 1, 2030 when upon such date
27 the provisions of this act shall be deemed repealed.